

UNITED STATES DISTRICT COURT

MIDDLE DISTRICT OF FLORIDA

Tampa Division

DAVIS, MATTHEW

Plaintiff,

v.

PASCO COUNTY SHERIFF,

Defendants.

Case No.: 8:24-cv-02907

AMENDED COMPLAINT FOR FALSE ARREST RESULTING IN

PERMANENT LOSS OF CUSTODY OF

CHILDREN

42 U.S.C. § 1983

Respectfully submitted,

Matthew Aaron Davis

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Date: January 2, 2024.

TABLE OF CONTENTS

Table of Contents.....1

Appendix.....2

Complaint.....3

 I. Introduction.....3

 II. Jurisdiction and Venue.....4

 III. Parties.....4

 IV. Timeline of Events.....5

 VI. Legal Claims.....16

 VII. Prayer for Relief.....18

Certificate of Service.....20

Appendix

1. *Doe v. Heck*, 327 F.3d 492 (7th Cir. 2003)
2. *Calabretta v. Floyd*, 189 F.3d 808 (9th Cir. 1999)
3. *Lawrence v. Texas*, 539 U.S. 558 (2003)
4. *Griswold v. Connecticut*, 381 U.S. 479 (1965)
5. *Moore v. City of East Cleveland*, 431 U.S. 494 (1977)
6. *Albright v. Oliver*, 510 U.S. 266 (1994)
7. *Manuel v. City of Joliet*, 137 S. Ct. 911 (2017)
8. *Stanley v. Illinois*, 405 U.S. 645 (1972)
9. *Troxel v. Granville*, 530 U.S. 57 (2000)
10. *Lassiter v. Department of Social Services*, 452 U.S. 18 (1981)
11. *Tenenbaum v. Williams*, 193 F.3d 581 (2d Cir. 1999)
12. *Brady v. Maryland*, 373 U.S. 83 (1963)
13. *Green v. McElroy*, 360 U.S. 474 (1959)
14. *Rakas v. Illinois*, 439 U.S. 128 (1978)
15. *United States v. Goodwin*, 457 U.S. 368 (1982)
16. *Hartman v. Moore*, 547 U.S. 250 (2006)
17. *Yick Wo v. Hopkins*, 118 U.S. 356 (1886)

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I. Introduction

Plaintiff, Matthew Aaron Davis, files this suit under Title 42, Section 1983, against Defendant

Pasco County Sheriff seeking redress for Constitutional violations by Pasco County, Florida.

After moving to Pasco County in 2008, Plaintiff started a united estate, a family, and for 14 years

stayed unified. Until the intervention of the Pasco County Sheriff and state's attorney

investigation. His last employment as a First Responder for Pasco County, Public Works. His

family's unity was shattered by a false arrest that removed his children permanently and an

investigation that ran concurrently with a child dependency case. This investigation, which only

targeted him despite his co-defendant also being allegedly involved, violated his Constitutional rights and human trafficked his children.

II. Jurisdiction and Venue

1. This Court has jurisdiction under *28 U.S.C. § 1331*, which grants district court's authority over civil actions arising under the Constitution, laws, of the United States.
2. This Court also has jurisdiction under *28 U.S.C. § 1343(a)(3)* and (4), which applies to cases seeking redress for the deprivation of civil rights.
3. Plaintiff brings this action under *42 U.S.C. § 1983* to address violations of rights protected by the Constitution and federal law and venue is proper in the Middle District of Florida under *28 U.S.C. § 1391(b)*, as a a substantial part of the events giving rise to the claim occurred in this district.

III. Parties

4. Plaintiff: Matthew Aaron Davis, former Pasco County First Responder (12403), currently residing at 4624 Charter St. Zephyrhills, FL 33542. Within the Middle District.
5. The Defendants include Pasco County Sheriff located at 8700 Citizens Dr. New Port Richey FL, 34652 and is the law enforcement entity within Pasco County.

IV. Timeline Of Events.

6 Starting in 2017, when the Plaintiff and his family settled in Zephyrhills, Florida, they were subjected to nearly three years of continuous investigations based on false reports and allegations of child abuse. Despite the repeated claims, every investigation conducted by the Department of Children and Families (DCF) concluded with no findings, and the family fully cooperated throughout the process. This included the unwarranted questioning of the children at their school and daycare, without the parents' consent or knowledge. In the case of

A. *Doe v. Heck*, 327 F.3d 492 (7th Cir. 2003) In this case, the Seventh Circuit held that social workers violated the Fourth Amendment rights of a child and her family by interviewing the child at school without parental consent and outside of the presence of a warrant or any emergency circumstances. The court emphasized that interviewing a minor without parental consent could violate the Fourth Amendment unless exigent circumstances exist. Also this is depicted in case

B. *Calabretta v. Floyd*, 189 F.3d 808 (9th Cir. 1999) In this case, the Ninth Circuit ruled that government officials (in this case, child protective services and law enforcement) violated the Fourth Amendment when they entered a home and interviewed a child without parental consent or a

warrant. The court emphasized the need for parental involvement or legal justification in questioning minors.

7. In mid 2019 the mother of the children in common, who lived with the Plaintiff in their family home arrived after a nine month incarceration period. They were met by the Department of Children and Families (DCF) three months after release accompanied by the Pasco County Sheriff Department demanding that the mother leave the home or they would remove the kids. Plaintiff called a family meeting with his fiancée and two sons to discuss what to do about this situation. All came to agreement that they would not turn their backs on a member of the family with the oldest son at the age of 7 stating "No man left behind". The children were instructed to not talk about their mother at daycare or school and did their part perfectly! For the next year and a half Plaintiff's family was constantly harassed and had to hide the mother for fear of their family being ripped apart. Plaintiff argued the legalities on a monthly basis with Judge Magistrate, DCF representative and counsel at the Sixth Judicial Circuit Court in and of Pasco County Florida on conference calls. Each stated that the children would be removed if the mother was caught at her own family's home where she would be half owner when balance was paid in full on rent to own lease. This is a fundamental core of our nation's birth being disgraced as in

A. *Lawrence v. Texas*, 539 U.S. 558 (2003) This case reinforced the right to privacy within one's home under the Due Process Clause of the 14th Amendment. The U.S. Supreme Court ruled that the government cannot intrude into private, consensual relationships within a home, affirming the

right to make personal decisions without interference from law enforcement. Also in

B. *Griswold v. Connecticut*, 381 U.S. 479 (1965) This landmark case established the constitutional right to privacy, particularly within the home, by protecting decisions made by individuals concerning their family and household and again in

C. *Moore v. City of East Cleveland*, 431 U.S. 494 (1977) In this case, the Supreme Court struck down a housing ordinance that limited the types of family members who could live together, citing the right of families to live together as a family should.

8. On or about December 9, 2020, around 6pm the Plaintiff arrived home where his fiancée and their children in common resided at, 6819 23rd St Zephyrhills, Florida 33542. He was arrested for domestic battery (case 512020MM004755MMAXES Sixth Judicial Circuit in and of Pasco County Florida). The criminal battery charges were later dropped as “no information” was filed by the State Attorney on February 11, 2021. Clearly a false arrest as in

A. *Albright v. Oliver*, 510 U.S. 266 (1994) if someone is arrested without probable cause and charges are not filed, it could be a violation of the Fourth Amendment and

B. *Manuel v. City of Joliet*, 137 S. Ct. 911 (2017) whereas his case held that a claim for unlawful detention based on lack of probable cause could continue under the Fourth Amendment.

9 As the Plaintiff had full custody of the children they were immediately removed by the Department of Children and Families (DCF) in case number 512020DR005966DRAXES Sixth Judicial Circuit Court in and of Pasco County Florida stating “failure to protect children from domestic violence”. A illegal act of human trafficking as in

A. *Stanley v. Illinois*, 405 U.S. 645 (1972) The Supreme Court ruled that parents cannot be deprived of custody of their children without a hearing on their fitness as parents. Hearsay or unverified information cannot justify removal without proper due process.

10 Plaintiff was released from jail the following day of the arrest and immediately went to pick up his children. He was met with retaliation by the maternal great grandparents who and the police were dispatched. Plaintiff was then threatened with charges of kidnapping if he was to take his children back to their family home as the Department of Children and Families (DCF) continued with prosecution. He was given paperwork that the mother and maternal great grandparents signed stating that the Plaintiff who is the father is “... acting in ways that have harmed the child or will harm the child.”. As in

- A. *Troxel v. Granville*, 530 U.S. 57 (2000) this case reinforced parental rights as a fundamental liberty interest protected by the Due Process Clause of the 14th Amendment. Removing children from a parent's custody requires more than vague or hearsay allegations. Also in
- B. *Lassiter v. Department of Social Services*, 452 U.S. 18 (1981) underscores the importance of procedural due process in parental rights cases. Evidence, not mere allegations, is required to protect due process rights.

11 In March 2021, during the first child dependency hearing (case 512020DR005966DRAXES Sixth Judicial Circuit Court in and of Pasco County Florida) four months after removal of the children. Plaintiff questioned the legalities around the removal of his children being that the charges were dropped of domestic violence and how the fruit from the poisonous tree doctrine should apply. After being denied, whereas a part of the Bipartisan Budget Act of 2018 the

- A. *Families First Prevention Services Act* should have returned the children and ended the child dependency case. As removal of children is a last resort after every service should be offered to keep families together. Also in

- B. *Tenenbaum v. Williams*, 193 F.3d 581 (2d Cir. 1999): The court ruled that seizing a child without a court order or exigent circumstances violates the Fourth Amendment.

12. Plaintiff was told he would have to complete parenting classes to regain custody of his children. Plaintiff presented evidence of completing two parenting classes, anger management class and a divorce class through the Department of Children and Families (DCF) website between the time of removal of the children and first hearing. These classes are advertised by DCF as “nationally court approved classes”. The Honorable Judge refused to recognize these certifications and mandated that Plaintiff retake the classes through Pasco County Florida, stating “...Do it again threw Pasco County" prolonging the separation from his children and the very denial of evidence of a higher entity as in

- A. *Brady v. Maryland*, 373 U.S. 83 (1963), whereas valuable tangible evidence was withheld that was in the Plaintiffs favor. Not to mention the
- B. *Supremacy Clause (U.S. Constitution, Article VI)* The Supremacy Clause establishes that federal law takes precedence over state or local law when the two conflict. In matters of anything.
- C. *Title IV-E of the Social Security Act (42 U.S.C. § 670 et seq.)* Title IV-E provides federal funds to states for foster care and adoption assistance programs. As part of this, states must comply with federal regulations

governing child welfare and DCF is a federal agency as opposed to Pasco County parenting classes through BayCare. Lastly in

D. *Green v. McElroy*, 360 U.S. 474 (1959) this case dealt with federal agencies having authority to set their own standards that might supersede state regulations. Though not directly related to parenting classes, the legal principle applies when federal agencies have the authority to implement and enforce their own programs that override state or local practices.

13. Also in March 2021, Plaintiff was arrested on charges of burglary, fraud, and dealing in stolen property (Case No. 512021CF001143CFAXES Sixth Judicial Circuit Court in and of Pasco County Florida) and placed under a states attorney investigation. Resulting from a complaint from a tourist now living in Kentucky. In the case of

A. *Rakas v. Illinois*, 439 U.S. 128 (1978) The Court emphasized the importance of lawful possession in determining standing in Fourth Amendment search and seizure cases. The defendants in the case could not challenge a search of a vehicle because they had neither ownership nor lawful possession of the car. This ruling supports the idea that only those with lawful possession or control of a property have the legal standing to claim a burglary, as burglary involves unlawful entry into a property someone has a right to control or occupy.

14. The complaint affidavit stated it had been filed on November 22, 2020. Much to his surprise because he had been working on that house everyday since he started the job in October 2020 and ended in mid January 2021. The home was sold on February 11 2021 and arrest was made in March 2021. Plaintiff was waiting for his payment for the work he had done and was never paid. Plaintiff believes this questionable arrest was to justify a state's attorney investigation to run concurrently with the newly initiated child dependency case and control his life to guarantee the loss of custody of his children permanently.

- A. *United States v. Goodwin*, 457 U.S. 368 (1982) explains how prosecutorial retaliation, including initiating criminal charges to manipulate another legal process, can violate due process. After not pursuing charges on the domestic battery case where the Plaintiff's children were illegally removed this arrest was made to initiate a investigation. Keeping his life in disarray.
- B. *Hartman v. Moore*, 547 U.S. 250 (2006) In this case, the Supreme Court held that plaintiffs claiming retaliatory prosecution must prove the absence of probable cause for the underlying criminal charges. The case involved a claim that the prosecution was initiated in retaliation for the plaintiff's protected speech.

15 Plaintiff's co-defendant, the mother of his children, was later arrested for the same burglary complaint on March 21, 2021. One day before the Plaintiff was released from incarceration and

placed, solely, under a State's Attorney investigation. Making the parents of the children serving alternating incarceration periods further separating the family ties. The State's Attorney Investigation was made to run exactly concurrent with the child dependency case for their children whom he had sole custody of. Both child dependency case and investigation commencing in March 2021.

A. Yick Wo v. Hopkins, 118 U.S. 356 (1886) shows that his landmark case held that laws, while neutral on their face, cannot be enforced in a discriminatory manner. If two people are similarly situated and only one is investigated without justification, it could be a violation of equal protection. Also in

B. Albright v. Oliver, 510 U.S. 266 (1994) , the Supreme Court emphasized that criminal charges must be supported by probable cause and should not be used maliciously or improperly. The Court recognized the protection against malicious prosecution under the Fourth Amendment and due process, emphasizing that charges cannot be used for purposes other than enforcing criminal laws. The case supports the position that criminal charges cannot be filed solely to initiate a state's attorney investigation or other proceedings that serve ulterior purposes.

16. Throughout the States Attorney Investigation gangstalking (employment of criminals to sever support networks and fabricate new not so support networks in return for a blind eye from

law enforcement) and social-gorilla warfare tactics were deployed to include extortion and defamation of character. All of the Plaintiffs friends and family members were threatened to keep the Plaintiff away and not to associate with him, cutting all support networks or suffer the consequences of gangstalking. This is shown in case of

A. *Christopher v. Nestlerode*, 373 F.3d 931 (8th Cir. 2004) depicts this case involving a civil rights claim under 42 U.S.C. § 1983 where law enforcement officers were accused of using a criminal informant to engage in actions that violated the plaintiff's constitutional rights. As gangstalkers are composed of the common citizens being directed by police with investigational technology.

17. The Plaintiff, a First Responder for Pasco County on inactive status, reputation was slandered to stop any new support networks from arising and caused widespread hate. Plaintiff's life was dramatically changed by means of an informal group social control. As known criminals and people recently released from prison were employed to isolate and make him guilty by association. Fabricating an image of his life that was completely alien to the way his family life was. Making him appear to be guilty by association for exchange of a blind eye from law enforcement or gifts of monetary value to include cars, boats and trailers.

- A. *Young v. City of Providence*, 404 F.3d 4 (1st Cir. 2005) This case involved a claim against police officers who allegedly used a confidential informant (a criminal) in ways that violated the civil rights of others.

18 While being electronically harassed and illegally monitored that was made public in a character assassination attempt. Several threats were made to the Plaintiffs in regards to his family's safety and extensive multiple attempts on the Plaintiffs life were made during this time. At that time the Plaintiffs soon to be brother-in-law Master Sergeant Dean Marshall Hills Jr US Military retired with a lot of enemies after 36 years of service in the Marine Corps. Plaintiff reached out to him for help during this time of extreme terror and threat to his family's life. Only to be met with retaliation. This created a sense of constant fear resulting in post dramatic stress syndrome (PTSD). The use of these tactics of war during a investigation is explained in the

- A. *Posse Comitatus Act (1878)* in *Laird v. Tatum*, 408 U.S. 1 (1972). This case involved military surveillance of civilian activities and by Plaintiff being illegally monitored before, during and after the investigation. Also to include the illegal war tactics deployed.

- a. For example the social gorilla warfare tactic of character assassination that ultimately lead to the Plaintiff being shot twice above the waist.

19 In December 2021, Plaintiff lost full custody of his children entirely due to his inability to complete the mandated classes a second time through Pasco County while under investigation by the State Attorney's Office that created a life of disruption, fear and constant conflict making it impossible to complete the child dependency case. Resulting in the permanent loss of custody and human trafficking of the Plaintiffs children. These Defendants threw their actions of employment successfully destroyed a "united estate" in the United States of America.

A. *Lo-Ji Sales, Inc. v. New York*, 442 U.S. 319 (1979) shows how law enforcement officers conducted an investigation in such an arbitrary and overbroad manner that it violated the Fourth Amendment. The investigators' actions were so excessive and invasive that they amounted to harassment. The Supreme Court ruled that the search and seizure conducted by the officers were unconstitutional because the scope of the investigation was not justified by the facts of the case. This case illustrates how overly aggressive and intrusive investigation tactics can cross the line and violate constitutional protections, making life difficult for the target in a way that violates their rights.

V. STATEMENT OF LEGAL CLAIMS

20. Count 1: Violation of Fourth Amendment Rights

A. Defendants violated Plaintiff's Fourth Amendment rights by conducting unlawful arrests and searches without probable cause or due process, as

established in *Terry v. Ohio*, 392 U.S. 1 (1968) and *Mapp v. Ohio*, 367 U.S. 643 (1961).

21. Count 2: Violation of Fifth and Fourteenth Amendment Rights

A. Defendants violated Plaintiff's due process rights under the Fifth and Fourteenth Amendments by denying fair legal proceedings and proper legal representation, as established in *Goldberg v. Kelly*, 397 U.S. 254 (1970) and *Gideon v. Wainwright*, 372 U.S. 335 (1963).

22. Count 3: Violation of Sixth Amendment Rights

A. Defendants violated Plaintiff's Sixth Amendment rights by denying him the right to a fair trial and effective assistance of counsel, as established in *Strickland v. Washington*, 466 U.S. 668 (1984) and *Barker v. Wingo*, 407 U.S. 514 (1972).

23. Count 4: Violation of Eighth Amendment Rights

A. Defendants violated Plaintiff's Eighth Amendment rights by subjecting him to cruel and unusual punishment by gangstalking and electronic harassment, as established in *Furman v. Georgia*, 408 U.S. 238 (1972) and *Stack v. Boyle*, 342 U.S. 1 (1951).

24. Count 5: Violation of First Amendment Rights

- A. Defendants violated Plaintiff's First Amendment rights by retaliating against him for exercising his right to fair trial and for seeking legal recourse, as established in *Pickering v. Board of Education*, 391 U.S. 563 (1968).

25 Count 6: *Posse Comitatus Act Violation 1878*

- A. Separation of military involvement within civilian law enforcement official business and proceedings. To include any investigation or interrogational aspects of civilian law violations.

"Everything stated, under penalty of perjury, in this document is true to the best of the Plaintiffs knowledge."

Vii. Prayer For Relief

Plaintiff demands jury trial and requests that this Court:

- A. Declare that Defendants' actions violated Plaintiff's constitutional rights including Federal Law.
- B. Grant injunctive relief to return custody of Plaintiffs children
- C. Grant injunctive relief punishing Defendants for illegal pursuit of unlawful practices and complete federal investigation in regards to past, present and future child removal incidents.

- D. Award Plaintiff reasonable attorney fees and cost pursuant to 42 U.S.C. Statue 1983 and any cost incurred during these proceedings.
- E. Award monetary damages, losses incurred and federal tax exemption. In the amount of \$2 million
- F. Grant any other and further relief as the Court seems just and proper.

Respectfully submitted,

MATTHEW AARON DAVIS
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Zephyrhills FL 33542
656-212-3599
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Date: January 2 , 2024

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MIDDLE DISTRICT OF FLORIDA

Tampa Division

DAVIS, MATTHEW

Plaintiff,

v

PASCO COUNTY SHERIFF,

Defendant.

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CERTIFICATE OF SERVICE

I, Matthew Aaron Davis, hereby certify that on this 2nd day of January, 2025, I served a true and correct copy of the following documents:

1. Complaint for false arrest resulting in permanent loss of custody Title 42 statue 1983

Upon the Pasco County Sheriff's Department and the following parties in the manner prescribed by law:

Pasco County Sheriff's Department

Attn: Sheriff Chris Nocco

8700 Citizens Drive

New Port Richey, FL 34654

Additionally, I certify that the aforementioned documents have been electronically filed with the Clerk of Court for the United States District Court, Middle District of Florida, via the Clerk of Court, which will send a notice of electronic filing to all counsel of record.

I declare under penalty of perjury, under the laws of the United States of America, that the foregoing is true and correct.

Respectfully submitted,

Matthew Aaron Davis

Pro Se Plaintiff

4538 Charter Street

Zephyrhills, FL 33542

Phone: 655-212-3599

Email: DavisMatthewA2024@gmail.com

Date: January 2, 2025